

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MARK ADAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN RODRIGUEZ, Shield # 642, SERGEANT
KISHON HICKMAN, Shield # 720, POLICE OFFICER
JUAN RODRIGUEZ, Shield # 31417, and POLICE
OFFICERS JOHN DOES# 1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

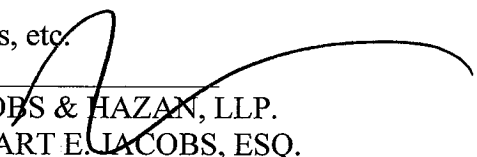
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 18, 2013

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER JONATHAN RODRIGUEZ, Shield # 642, 25th Precinct, 120 E 119th
St, New York, NY 10035

SERGEANT KISHON HICKMAN, Shield # 720, 49th Precinct, 2121 Eastchester Rd,
Bronx, NY 10461
POLICE OFFICER JUAN RODRIGUEZ, Shield # 31417, 25th Precinct, 120 E 119th St,
New York, NY 10035

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MARK ADAMS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On September
21, 2012, at approximately 6:30 p.m., plaintiff, MARK ADAMS, while lawfully walking on the
sidewalk in the vicinity of 124th Street between 1st Avenue and 2nd Avenue, New York, New
York, was subject to an unlawful assault, battery, and use of excessive force by the defendant
New York City police officers. Plaintiff was deprived of his constitutional and common law
rights when the individual defendants unlawfully assaulted, battered, and used excessive force
against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United
States Constitution.

PARTIES

2. Plaintiff MARK ADAMS is a resident of the State of New York.

3. POLICE OFFICER JONATHAN RODRIGUEZ, Shield # 642, is and was at
all times relevant herein, an officer, employee, and agent of the New York City Police
Department.

4. POLICE OFFICER JONATHAN RODRIGUEZ, Shield # 642, is and was at all times relevant herein, assigned to the 25th precinct.

5. POLICE OFFICER JONATHAN RODRIGUEZ, Shield # 642, is being sued in his individual and official capacities.

6. P SERGEANT KISHON HICKMAN, Shield # 720, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT KISHON HICKMAN, Shield # 720, is and was at all times relevant herein, assigned to the 25th precinct.

8. SERGEANT KISHON HICKMAN, Shield # 720, is being sued in his individual and official capacities.

9. POLICE OFFICER JUAN RODRIGUEZ, Shield # 31417, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER JUAN RODRIGUEZ, Shield # 31417, is and was at all times relevant herein, assigned to the 25th precinct.

11. POLICE OFFICER JUAN RODRIGUEZ, Shield # 31417, is being sued in his individual and official capacities.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department

which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on or about September 9, 2013.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On September 21, 2012, at approximately 6:30 p.m., plaintiff was lawfully walking on 124th Street between 1st Avenue and 2nd Avenue, New York, New York.

23. Plaintiff is a freelance automotive mechanic, and was walking from a job at 126th Street and 2nd Avenue to another job at 124th Street and 1st Avenue.

24. As claimant was walking from 2nd Avenue to 1st Avenue on 124th Street, New York, New York, two defendant plainclothed NYPD officers exited an unmarked NYPD vehicle and unlawfully approached plaintiff in an extremely aggressive manner, causing plaintiff to fear for his physical safety.

25. The defendant NYPD officers ordered plaintiff to stop and asked what plaintiff was carrying in his hand.

26. Plaintiff told the defendant NYPD officers that he was carrying his cell phone and held the cell phone up to show the defendant officers.

27. The defendant NYPD officers then asked plaintiff what plaintiff had in his pockets.

28. Plaintiff told the defendant NYPD officers he had some cash in his pockets, and asked the defendants why they stopped him when he had done nothing wrong.

29. The defendant NYPD officers told plaintiff they would throw him to the ground and forcibly search him if plaintiff did not cooperate.

30. Plaintiff spread his arms and legs so the defendant NYPD officers could frisk and search him and said, "go ahead and do what you need to do. Do you want to see my ID?"

31. Upon information and belief, the defendant NYPD officers did not believe that plaintiff posed a threat or danger to the defendant NYPD officers.

32. No reasonable police officer would have believed that plaintiff posed a threat or danger to the defendant NYPD officers.

33. Nevertheless, one of the defendant NYPD officers unlawfully tackled plaintiff in a rough and aggressive manner and physically threw plaintiff face-first onto the ground, without probable cause or any legal justification.

34. The defendant police officers then handcuffed plaintiff excessively tightly without cause or legal justification, causing plaintiff severe pain to his wrists.

35. At no time did plaintiff resist arrest in any way.

36. At no time did the defendant officers recover any drugs, weapons or contraband of any kind from plaintiff.

37. One of the defendant NYPD officers then grabbed the back of plaintiff's head, slammed his face into the pavement multiple times, and told him to "shut the fuck up," without cause or legal justification.

38. Notably, at the time that the defendant NYPD officer slammed plaintiff's head into the pavement multiple times, he was handcuffed and lying face down on the ground.

39. The defendant NYPD officers then sprayed plaintiff in the eyes and mouth with a chemical substance believed to be Mace, without cause or legal justification.

40. Notably, at the time that the defendant NYPD officer sprayed plaintiff in the eyes and mouth with a chemical substance believed to be Mace, he was handcuffed and lying face down on the ground.

41. Approximately 5 additional "John Doe" defendant NYPD officers arrived at the scene just after plaintiff was sprayed with a chemical substance believed to be Mace.

42. Plaintiff attempted to tell the approximately 5 "John Doe" defendant NYPD officers that the two defendant NYPD officers beat him up without cause or legal justification.

43. All of the defendant NYPD officers surrounded plaintiff and one of the “John Doe” NYPD officers unlawfully kicked plaintiff in the right side of the face, without cause or legal justification.

44. Notably, at the time that the defendant “John Doe” NYPD officer kicked plaintiff in the right side of the face, plaintiff was handcuffed and lying face down on the ground.

45. At no time did plaintiff verbally or physically threaten the defendant NYPD officers, and no reasonable police officer would believe that plaintiff verbally or physically threatened the defendant NYPD officers at any time.

46. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

47. Plaintiff was assaulted and battered and excessive force was used against plaintiff by the defendant NYPD officers without cause or legal justification.

48. After plaintiff was brutally attacked by the defendant NYPD officers, he was transported by EMS to Harlem Hospital Center, where plaintiff was treated for severe injuries to his body, including but not limited to head pain, right orbital pain, wrist tenderness, abrasions, spine tenderness, neck pain, right shoulder pain, joint pain in forearm, pain to arm and legs, body aches, left thigh bleeding, and vomiting.

49. On September 22, 2012, plaintiff was discharged from Harlem Hospital to the custody of the defendant NYPD officers, who transported plaintiff to the 25th precinct.

50. After many hours in a holding cell at the 25th precinct, plaintiff was transported to Manhattan Central Booking on September 22, 2012.

51. Plaintiff was arraigned on September 22, 2012, and the judge set bail at \$1,500, which plaintiff could not post, so he was remanded to the custody of the Department of Correction.

52. Plaintiff received further medical treatment while he was in the custody of the Department of Correction.

53. None of the individually named defendants intervened to prevent or stop the assault and battery of plaintiff or prevent further injury to plaintiff.

54. By failing to intervene in order to stop this assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

55. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

56. Plaintiff's physical injuries permanently prevent plaintiff from ever working as a mechanic.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The use of excessive force by defendants in throwing plaintiff onto the ground, handcuffing plaintiff excessively tightly, slamming his head into the ground multiple times, spraying plaintiff in the face with a chemical substance believed to be Mace, and kicking plaintiff in the face was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Assault

60. Plaintiff repeats and realleges paragraphs 1 through 59 as if fully set forth herein.

61. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Battery

64. Plaintiff repeats and realleges paragraphs 1 through 63 as if fully set forth herein.

65. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of correction officer duties on September 21, 2012 at the aforementioned location.

FIFTH CAUSE OF ACTION

Failure to Intervene

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, plaintiff was brutally physically assaulted.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants owed a duty of care to plaintiff.

78. Defendants breached that duty of care by assaulting, battering, and using excessive force against plaintiff.

79. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

80. All of the foregoing occurred without any fault or provocation by plaintiff.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. By the actions described herein, the individually named correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Mark Adams. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a result of the foregoing, plaintiff was deprived of liberty, was assaulted, and sustained great emotional injuries.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

86. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Mark Adams demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 18, 2013

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

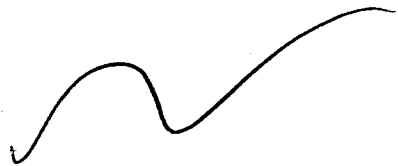
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER JONATHAN RODRIGUEZ, Shield # 642, 25th Precinct, 120 E 119th St, New York, NY 10035
SERGEANT KISHON HICKMAN, Shield # 720, 49th Precinct, 2121 Eastchester Rd, Bronx, NY 10461
POLICE OFFICER JUAN RODRIGUEZ, Shield # 31417, 25th Precinct, 120 E 119th St, New York, NY 10035

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
December 18, 2013



STUART E. JACOBS